

**JUSTIFICATION REVIEW DOCUMENT
FOR OTHER THAN FULL AND OPEN COMPETITION – FAR PART 6**

Program/Equipment: Full Food Service (FFS) at Fort Eisenhower, Georgia.

Authority: 10 U.S.C. 3204(a)(5) as implemented by FAR 6.302-5(a)(2)(i), A statute expressly authorizes or requires that the acquisition be made through another agency or from a specified source.

Amount: \$32,154,321.00

Prepared by:

Contracting Officer: O'cie Hendricks
Contract Officer
Email: ocie.d.hendricks.civ@army.mil

DSN: [REDACTED]
Date: 01 JAN 25

Technical:

Requirements:

Reviews: I have reviewed this justification and find it adequate to support other than full and open competition.

Program Manager:

Date: See digital signature

Small Business Professional:

Date: See digital signature

Director, MICC-Eisenhower:

[Redacted]

[Redacted]

Date: See digital signature

MICC Office of Counsel:

[Redacted]

[Redacted]

Date: See digital signature

Director, FDO-Fort Eustis:

[Redacted]

[Redacted]

Date: See digital signature

Director, Small Business Program:

[Redacted]

[Redacted]

Date: See digital signature

Alternate Advocate for Competition:

[Redacted]

[Redacted]

Date: See digital signature

**FAR Part 6 Justification and Approval for Other than
Full and Open Competition**

1. Contracting Activity: U.S. Army Mission and Installation Contracting Command (MICC)-Fort Eisenhower, 271 Heritage Park Lane, Building 35200, Fort Eisenhower, GA 30905.

2. Description of Action: The Fort Eisenhower Logistics Readiness Center (LRC) requests a firm-fixed-price, contract modification to contract W9124J-20-D-0003 with Georgia's State Licensing Agency (SLA) who is the Georgia Vocational Rehabilitation Agency, 5238 Royal Woods Pkwy, Tucker, GA 30084. The Government projects award for April 2025 and fiscal year 2025, Operations and Maintenance funds will be used.

3. Description of Supplies/Services: Full Food Service (FFS) at five Dining Facilities on Fort Eisenhower. The services associated with FFS include Dining Facility Management functions, food preparation, facility sanitation and janitorial duties. Throughout the IDIQ's five-year ordering period, the Government has issued task orders with a one-year period of performance to meet the FFS needs.

Ordering Period with execution of FAR Clause 52.217-8: 24 JAN 2020 to 23 JUL 2025

Original Ceiling Value:

Additional Ceiling Capacity Requested:

Adjusted Ceiling Capacity:

4. Authority Cited: 10 U.S.C. § 3204(a)(5), as implemented in FAR 6.302-5(a)(2)(i), A statute expressly authorizes or requires that the acquisition be made through another agency or from a specified source.

5. Reason for Authority Cited: As described in FAR 6.302-5, full and open competition need not be provided for when a statute expressly authorizes or requires that the acquisition be made through another agency or from a specified source. Increasing the ceiling of the current contract is required to allow the incumbent to continue to provide full food services without resulting in an unacceptable delay or cancellation of service which would negatively impact Fort Eisenhower, GA's (FEGA) obligations to its critical training mission.

a. Background. This requirement is covered under the Randolph-Sheppard Act (R-SA), Title 20 U.S.C. § 107 et seq., which provides a priority for blind vendors recognized and represented by State Licensing Agencies in the award of contracts for, among other things, the operation of cafeterias on Federal property. In addition, 34 CFR § 395.33(d), Operation of Cafeterias by Blind Vendors, states:

“...Federal property managing departments, agencies, and instrumentalities may afford priority in the operation of cafeterias by blind vendors on Federal property through direct negotiations with State Licensing Agencies, whenever such department, agency, or instrumentality determines, on an individual basis, that such operation can be provided at a reasonable cost, with food of a high quality comparable to that currently provided employees...” (Retrieved 12 March 2025)

The Georgia Vocational Rehabilitation Agency (GRVA) is singularly qualified to provide the required services, as they competed and were awarded the current contract competitively and they are the only company positioned to ensure continuation of services.

On 24 January 2020, The Mission and Installation Contracting Command-Fort Sam Houston (MICC-FSH) awarded Contract No. W9124J-20-D-0003 to the GVRA to acquire FFS operations for five dining facilities. This contract has a 66 month ordering period with the execution of FAR Clause 52.217-8 (24 January 2020 to 23 July 2025). This indefinite delivery/indefinite quantity (IDIQ) contract had an initial maximum value or program ceiling of [REDACTED]

The MICC-Installation Readiness Center (MICC-IRC), on behalf of the Fort Eisenhower Logistics Readiness Center (LRC-Eisenhower), is the procuring contracting office responsible for the FFS contract re-compete. Headquarters ASC and Headquarters MICC are improving the Army Food Service program by revising the standard requirements package and standard contract. Restructuring the standard has delayed HQ ASC's development of the procurement requirements package for several installations, to include Fort Eisenhower. As a result, MICC-Fort Eisenhower exercised FAR Clause 52.217-8 to extend the ordering period of the current contract and issued a 6 month task order to continue FFS and prevent a lapse in service. When this 6-month task order ends in July 2025, another 12-month task order will be necessary because of the delays caused by the standardization that prevented a timely start of the follow-on procurement.

The requested ceiling increase of \$32,154,321.00 would allow the current task order W9124J-25-F-0010 to be funded for the remainder of its performance period through 23 July 2025. In addition, this increase will provide the capacity to extend services into July 2026 through issuance of a new 12-month task order in July 2025. The original IDIQ ceiling established at contract award will only support performance through 15 April 2025.

	Value of Orders Planned or Issued	Remaining IDIQ Ceiling Capacity
Contract Award		
24 JAN 2020 to 23 JAN 2025		
24 JAN 2020 to 23 JAN 2025		
Ceiling Increase \$32,154,321 1 APR 2025		
24 JUL 2020 to 23 JUL 2025		

b. Alternatives.

1) Suspension of Operations. Suspension of operations is not a viable option. The services provided by the current contract (paragraph 3) are directly linked to Fort Eisenhower's training mission. Regardless of the force posture changes, training will continue to occur, and the Soldier trainees will need the Full Food Services provided by the five Dining Facilities.

2) Allow the current contract to expire. Like suspending operations, any alternative that does not provide meals to the Soldiers is not a viable option. Failure to provide these services would have a major impact on the health and welfare of the Soldiers on the installation, with the majority of the population being Soldiers attending Advanced Individual Training (AIT) who depend on meal entitlement provisions. The failure to provide meals would jeopardize the Army's mission to train students and fulfill basic and specialized training.

3) Catered Meals. Army Regulation (AR) 30-22 paragraph 3-45(b) authorizes commercially prepared catered meals when food service personnel or equipment are not authorized or available and support cannot be obtained from another Reserve Component or Active Army unit with food service capabilities. Additionally, the Deputy Chief of Staff, G-4 for the Department of the Army has authority for granting such a waiver as a cost saving initiative. FEAGA provides feeding support to approximately 5,500 Soldiers for 3 meals, per day. To provide a catering service for this vast quantity of personnel will require coordination and management of multiple logistics services, to include transportation, supplies and equipment. The requirements could potentially overwhelm the local markets, and the cost of delivery and logistics would be unreasonable. An additional contract will be required, which would result in additional cost to the Army that may surpass the requested amount of the current contract. Solicitation of such contracts would involve a process that would not provide for full and open competition as it would need to start immediately to meet mission requirements of this installation. Lastly, Title 10 U.S.C. Section 2533a (Berry Amendment) provides mandated use of domestic food items, using catered meals from a commercial venue

would be problematic as the source of production is difficult to monitor, and thus a waiver from G-4 more difficult to obtain.

4) Military/Government Augmentation. This option would not be valid as none of the tenant units on FEAGA are authorized military food service personnel (92G). There are only 3 DA civilians authorized on the LRC-Eisenhower who serves as the installation Food Program Manager, Contract Officer Representative and the Quality Assurance Evaluator for the FFS contract.

5) Supplementing with MREs. Each MRE provides an average of 1,250 calories per meal. MREs are only intended for 10 days or less and only in the extreme environment when Soldiers are highly active. MREs are designed for a wartime environment when Soldiers are on the move and are not designed for Soldiers in a training environment when their days are a combination of some field training, and classroom instruction depending on the type of training required. Soldiers will not be able to burn off the 3,750 calories that would be accumulated daily by consuming MREs. In addition, training units would have to suspend normal operations to facilitate ordering, receiving, storing, issuing and accounting for thousands of rations. The Subsistence Supply Management Office (SSMO) will have to hire additional personnel to support the handling of this magnitude of MREs and supplements.

6) Basic Allowance for Subsistence (BAS). Authorizing BAS would not be a viable option as the majority of the Soldiers stationed on FEAGA are students with no means to procure or to prepare their own meals if placed on BAS. The barracks are not equipped with kitchen facilities or adequate equipment to support cooking. Training conducted at Fort Eisenhower must be supported by sufficient calorie intake provided by DFACs in accordance with set meal plans. If the DFACs closed, training cannot be conducted. Suspension of training would not only slow the process of current training cycles but would also cause a backlog of future training for the Army which would have a worldwide negative impact on training and real-world missions.

c. Additional information.

1) The current contract ceiling only allows LRC -Eisenhower to fund [REDACTED] for 2.5 months of the task order (01 February 2025 to 15 April 2025). FEAGA will require the ceiling increase of \$32,154,321.00 to cover the following:

- The remaining 3 months (16 April 2025 to 15 July 2025) of the W9124J-25-F-0010 task order, estimated at [REDACTED]
- The 12-month task order (16 July 2025 to 15 July 2026) estimated at [REDACTED]

2) If competition and time were feasible, FEAGA would have proceeded with the normal solicitation process. However, due to the delay with the re-compete and the

[REDACTED]

magnitude and complexity of the requirement, the incumbent contractor GRVA is the only available source that can provide services until a new competitively awarded contract can be executed. For complex acquisitions such as full food services, a minimum phase-in period of sixty days from the start date of the new contract is typically necessary when a new contract has been awarded. Because of the short-term period of the 12-month task order, an award to another vendor other than GVRA would result in an additional cost to the Government that is not expected to be recovered through competition.

3) Other Contractors would possibly be capable of providing similar services if there was adequate time available to solicit for a bridge contract and sufficient time for a reasonable transition and phase-in period. However, it is unrealistic to solicit services of this magnitude, award, and transition to a new contract. FEAGA's mission is to provide base operations support, quality of life, and services essential to the entire FEAGA community and the nation's warfighting mission. The current FFS Contract provides services to TRADOC Soldiers attending Advanced Individual Training (AIT). Each military occupational specialty taught at AIT has its own training requirements and class schedule, and because of this, there are fluctuations in the number of meals served per day/month at each dining facility. Successfully executing the AIT mission means ensuring that FEAGA's food service program supports a large population of soldiers that fluctuates frequently throughout the year. The primary customers utilizing the Dining Facilities (DFACs) are AIT students. The installation hosts an average of 60,000 AIT and TDY Soldiers for military training each year. Annual recruiting goals, training schedules, and Army requirements in theater can impact the number of soldiers that use the five dining facilities. Additional DFAC customers include permanent party soldiers. The installation also provides support to non-tenant units such as Army Reserve and National Guard forces during mobilization and annual training.

d. Impact if justification is not approved. Failure to approve this action will result in a break of services of FEAGA's full food service operation and closure of all five dining facilities. As a result, FEAGA will not be able to meet critical feeding mission to the Soldiers. Soldier readiness and quality of life will rapidly decline in health and welfare as they will not receive the proper sustenance required to maintain and be physically capable of performing and train.

6. Efforts to Obtain Competition: In accordance with FAR 5.202(a)(4), this action will not be synopsized. As indicated in the description of action, the current IDIQ contract holder will continue for the duration of the IDIQ. A new competitive procurement for a follow-on to the current FFS IDIQ will be handled by MICC-Installation Readiness Center.

a. Effective Competition: Because this is a sole source action, effective competition is not applicable.

b. Subcontracting Competition: The Government will request a subcontracting plan for this contract action and will coordinate review of the plan with the Small Business Specialist (SBS) and Small Business Administration (SBA) Procurement Center Representative (PCR) as required by FAR 19.705-4(d)(7). Additionally, the approved plan will be incorporated and made a material part of the contract as required by FAR 19.705-5(a)(5). Finally, a copy of the award document will be provided to the Area Director for the SBA Area Office where the contract will be performed as required by FAR 19.705-6(a) and a copy of the final negotiated subcontracting plan will be provided to the SBA PCR as required by FAR 19.705-6(c).

7. Actions to Increase Competition: As indicated in the description of action, the current IDIQ contract holder will continue for the duration of the IDIQ. A new competitive procurement for a follow-on to the current FFS IDIQ will be handled by MICC-IRC.

8. Market Research: In accordance with Defense Federal Acquisition Regulation Supplement (DFARS) 205.205-71, DFARS 206.302-1(d), and DFARS Procedures, Guidance and Information (PGI) 206.302-1(d), a sources sought was posted to SAM.gov on 06 January 2025 to 10 January 2025 and no responses were received.

9. Interested Sources: Not applicable

10. Other Facts:

Procurement History:

- Contract: W9124J-20-D-0003
Contractor: GEORGIA VOCATIONAL REHABILITATION AGENCY
Competitive Status: Full and Open
Current Status: Ordering period ends 23 July 2025
- Contract: W9124J-21-F-0027
Contractor: GEORGIA VOCATIONAL REHABILITATION AGENCY
Competitive Status: N/A
Current Status: POP Ended 31 Jan 2022
- Contract: W9124J-22-F-0031
Contractor: GEORGIA VOCATIONAL REHABILITATION AGENCY
Competitive Status: N/A
Current Status: POP Ended 31 Jan 2023
- Contract: W9124J-23-F-0019
Contractor: GEORGIA VOCATIONAL REHABILITATION AGENCY
Competitive Status: N/A
Current Status: POP Ended 31 Jan 2024

- Contract: W9124J-24-F-0021
Contractor: GEORGIA VOCATIONAL REHABILITATION AGENCY
Competitive Status: N/A
Current Status: POP Ended 31 Jan 2025
- Contract: W9124J-25-F-0010
Contractor: GEORGIA VOCATIONAL REHABILITATION AGENCY
Competitive Status: N/A
Current Status: POP Ends 15 April 2025

11. Technical Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

Date: See digital signature

Logistics Management Specialist/COR

12. Requirements Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

Date: See digital signature

Director, Logistics Readiness Center

13. Fair and Reasonable Cost Determination: I hereby determine that the anticipated cost or price to the Government for this contract action will be fair and reasonable. This determination will be made using the IGCE. As a part of this basis, certified cost or pricing data will not be required and the following exception applies (FAR 15.403): The contract action is a modification to a contract for commercial item(s).

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O'cie Hendricks
Contracting Officer

14. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

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O'cie Hendricks
Contracting Officer

Approval

Based on the foregoing justification, I hereby approve the procurement of Full Food Service at Fort Eisenhower on an other than full and open competition basis pursuant to the authority of Title 10 U.S.C. 3204(a)(5) as implemented by Federal Acquisition Regulation 6.302-5(a)(2)(i), A statute expressly authorizes or requires that the acquisition be made through another agency or from a specified source. The estimated value of the ceiling increase is \$32.2M to the existing 66 month ordering period from 24 January 2020 through to 23 July 2025. The approval is subject to availability of funds, and provided that the services or supplies herein described have otherwise been authorized for acquisition.

[REDACTED]

Senior Contracting Official
U.S. Army Mission and Installation Contracting Command, JBSA Fort Sam Houston, TX